

INCYTE CORP. et al v. ALEMBIC PHARMACEUTICALS LIMITED et al

Plaintiff:	INCYTE CORP. and INCYTE HOLDINGS CORP.
Defendant:	ALEMBIC PHARMACEUTICALS LIMITED and ALEMBIC PHARMACEUTICALS, INC.
Case Number:	1:2026cv07841
Filed:	June 26, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Christine P O'Hearn
Referring Judge:	Matthew J Skahill
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

Docket Report

This docket was last retrieved on July 9, 2026. A more recent docket listing [may be available from PACER](#).

Date Filed	Document Text
July 9, 2026	Filing 8 WAIVER OF SERVICE Returned Executed by INCYTE CORP., INCYTE HOLDINGS CORP.. ALEMBIC PHARMACEUTICALS, INC. waiver sent on 7/7/2026, answer due 9/8/2026. (LIZZA, CHARLES)
July 9, 2026	Filing 7 WAIVER OF SERVICE Returned Executed by INCYTE CORP., INCYTE HOLDINGS CORP.. ALEMBIC PHARMACEUTICALS LIMITED waiver sent on 7/7/2026, answer due 9/8/2026. (LIZZA, CHARLES)
July 7, 2026	Filing 6 NOTICE of Appearance by ALEXANDER LEE CALLO on behalf of INCYTE CORP., INCYTE HOLDINGS CORP. (CALLO, ALEXANDER)
June 30, 2026	Filing 5 NOTICE of Appearance by SARAH ANN SULLIVAN on behalf of INCYTE CORP., INCYTE HOLDINGS CORP. (SULLIVAN, SARAH)

Date Filed	Document Text
June 30, 2026	Filing 4 SUMMONS ISSUED as to ALEMBIC PHARMACEUTICALS LIMITED, ALEMBIC PHARMACEUTICALS, INC.. Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. (dnw)
June 30, 2026	Filing 3 AO120 Patent/Trademark Form filed. (Attachments: #1 See Complaint, #2 Civil Cover Sheet) (dnw)
June 26, 2026	Judge Christine P. O'Hearn and Magistrate Judge Matthew J. Skahill added. (mmb)
June 26, 2026	Filing 2 Corporate Disclosure Statement by INCYTE CORP., INCYTE HOLDINGS CORP.. (LIZZA, CHARLES)
June 26, 2026	Filing 1 COMPLAINT against ALEMBIC PHARMACEUTICALS LIMITED, ALEMBIC PHARMACEUTICALS, INC. (Filing and Admin fee \$ 405 receipt number ANJDC-17590121) , Related Case Selected, filed by INCYTE CORP., INCYTE HOLDINGS CORP.. (Attachments: #1 Civil Cover Sheet)(LIZZA, CHARLES)

I. Executive Summary and Procedural Information

Parties & Counsel:

Plaintiff: [Incyte Corporation](#) and [Incyte Holdings Corporation](#) (Delaware)

Defendant: [Alembic Pharmaceuticals Limited](#) (India) and Alembic Pharmaceuticals, Inc. (New Jersey)

Plaintiff's Counsel: [Saul Ewing LLP](#)

Case Identification: [1:26-cv-07841](#), D.N.J., 06/26/2026

Venue Allegations: Venue is asserted based on Defendant Alembic Pharmaceuticals, Inc. having a principal place of business in the District of New Jersey, and Defendant Alembic Pharmaceuticals Limited being a foreign corporation.

Core Dispute: Plaintiff alleges that Defendant's submission of an Abbreviated New Drug Application (ANDA) to the FDA for a generic version of the drug Jakafi® (ruxolitinib) constitutes an act of infringement of six patents covering the active pharmaceutical ingredient, its salts, and methods of use.

Technical Context: The technology relates to small molecule inhibitors of Janus kinases (JAKs), a family of enzymes integral to cell signaling pathways, particularly those involved in the immune system and cell growth.

Key Procedural History: This is a Hatch-Waxman action triggered by Defendants' submission of ANDA No. 221546 seeking to market a generic version of Jakafi® prior to the

expiration of Plaintiff's patents. Defendants filed a Paragraph IV certification, asserting that the patents-in-suit are invalid and/or will not be infringed by their proposed product. The complaint notes that the matter is related to other pending litigation involving the same patents against different generic drug manufacturers.

Case Timeline

Date	Event
2006-01-13	Priority Date for '257 and '362 Patents
2007-06-13	Priority Date for '693, '481, '013, and '429 Patents
2009-10-06	'257 Patent Issued
2013-04-09	'362 Patent Issued
2014-05-13	'693 Patent Issued
2014-09-02	'481 Patent Issued
2014-09-09	'013 Patent Issued
2018-07-10	'429 Patent Issued
2026-06-26	Complaint Filed

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 7,598,257 - "Heteroaryl Substituted Pyrrolo[2,3-b]pyrimidines and Pyrrolo[2,3-b]pyridines as Janus Kinase Inhibitors"

The Invention Explained

Problem Addressed: The patent describes a need for compounds that can modulate the activity of protein kinases, which are a large family of enzymes that regulate diverse and important biological processes '257 Patent, col. 4:7-13 Specifically, it identifies the Janus kinase (JAK) family as a key target for treating diseases related to abnormal cellular responses triggered by cytokine signaling, such as immune-related diseases, myeloproliferative disorders, and cancer '257 Patent, col. 6:15-23

The Patented Solution: The invention provides a class of chemical compounds, generally described as heteroaryl-substituted pyrrolo[2,3-b]pyrimidines and pyrrolo[2,3-b]pyridines, that are asserted to be useful as inhibitors of JAKs '257 Patent, abstract '257 Patent, col. 6:24-34 These compounds are defined by a core chemical structure (Formula I) with various specified substituent groups.

Technical Importance: This technology provided a novel chemical scaffold for creating potent inhibitors of the JAK family, a class of therapeutic targets that was gaining significance for treating a range of inflammatory and oncologic conditions.

Key Claims at a Glance

- The complaint alleges infringement of "one or more claims" of the '257 Patent without specifying which ones **Compl. ¶137** Independent claim 1 is a composition of matter claim covering a broad genus of compounds.
- Claim 1 of the '257 patent claims:
 - A compound of Formula I, which depicts a core pyrrolo[2,3-d]pyrimidine structure.
 - Or a pharmaceutically acceptable salt or a prodrug thereof.
- The claim further defines the various chemical groups (A1, A2, U, V, X, Y, Z, and numerous R groups) that can be attached to the core structure, creating a large Markush group of related compounds.

U.S. Patent No. 8,415,362 - "Pyrazolyl Substituted Pyrrolo[2,3-b]pyrimidines as Janus Kinase Inhibitors"

The Invention Explained

- **Problem Addressed:** Similar to the '257 patent, this patent addresses the need for effective modulators of JAK enzymes to treat diseases associated with their activity, including immune disorders and cancer **'362 Patent, col. 6:25-34**
- **The Patented Solution:** The patent claims a class of pyrazolyl-substituted pyrrolo[2,3-b]pyrimidine compounds, including the specific compound 3-cyclopentyl-3-[4-(7H-pyrrolo[2,3-d]pyrimidin-4-yl)-1H-pyrazol-1-yl]propanenitrile, also known as ruxolitinib **'362 Patent, abstract**
'362 Patent, col. 414:20-25 These compounds are presented as inhibitors of JAKs.
- **Technical Importance:** This patent specifically identifies and claims the chemical structure for ruxolitinib, the active ingredient in the commercially successful drug Jakafi®, representing a significant development in the field of JAK inhibitors.

Key Claims at a Glance

- The complaint alleges infringement of "one or more claims" of the '362 patent **Compl. ¶146** Independent claim 1 is a broad composition of matter claim, and claim 21 specifically claims the compound that is ruxolitinib.
- Claim 1 of the '362 patent claims:
 - A compound of Formula I, a pyrazolyl substituted pyrrolo[2,3-b]pyrimidine.
 - Or a pharmaceutically acceptable salt thereof.
- The claim includes a complex Markush structure defining the possible substituents for the core molecule. A Certificate of Correction was issued for this patent, correcting numerous chemical terms within the claims, a detail that may be relevant to claim construction.

U.S. Patent No. 8,722,693 - "Salts of the Janus Kinase Inhibitor (R)-3-(4-(7H-Pyrrolo[2,3-d]pyrimidin-4-yl)-1H-Pyrazol-1-yl)-3-Cyclopentylpropanenitrile"

Technology Synopsis

This patent addresses the need for forms of the ruxolitinib compound with improved properties for formulation and administration, such as enhanced stability or solubility ['693 Patent, col. 2:25-31](#) It claims specific salt forms of ruxolitinib, namely the maleic acid, sulfuric acid, and phosphoric acid salts ['693 Patent, abstract](#)

Asserted Claims

The complaint asserts infringement of "one or more claims" [Compl. ¶55](#)

Accused Features

The act of filing an ANDA for a generic drug product that is alleged to be or contain one of the claimed salt forms of ruxolitinib [Compl. ¶55](#)

U.S. Patent No. 8,822,481 - "Salts of the Janus Kinase Inhibitor (R)-3-(4-(7H-Pyrrolo[2,3-d]pyrimidin-4-yl)-1H-Pyrazol-1-yl)-3-Cyclopentylpropanenitrile"

Technology Synopsis

This patent, like the '693 patent, is directed to specific salt forms of ruxolitinib to provide advantageous pharmaceutical properties ['481 Patent, col. 2:25-31](#) It claims methods of modulating JAK activity by administering the phosphate salt of ruxolitinib, including in a crystalline form ['481 Patent, abstract](#) ['481 Patent, claim 1](#)

Asserted Claims

The complaint asserts infringement of "one or more claims" [Compl. ¶64](#)

Accused Features

The proposed manufacture, use, or sale of a generic product containing the claimed phosphate salt of ruxolitinib for the purpose of modulating JAK activity [Compl. ¶64](#)

U.S. Patent No. 8,829,013 - "Salts of the Janus Kinase Inhibitor (R)-3-(4-(7H-Pyrrolo[2,3-d]pyrimidin-4-yl)-1H-Pyrazol-1-yl)-3-Cyclopentylpropanenitrile"

Technology Synopsis

This patent also covers salts of ruxolitinib ['013 Patent, col. 2:25-31](#) The claims are directed to methods of treating specific myeloproliferative disorders, such as polycythemia vera and essential thrombocythemia, by administering the phosphate salt of ruxolitinib ['013 Patent, claim 1](#) ['013 Patent, claim 7](#)

Asserted Claims

The complaint asserts infringement of "one or more claims" [Compl. ¶73](#)

Accused Features

The filing of an ANDA with a label that will allegedly instruct users to administer the generic ruxolitinib product for the treatment of the claimed disorders [Compl. ¶33](#) [Compl. ¶73](#)

U.S. Patent No. 10,016,429 - "Salts of the Janus Kinase Inhibitor (R)-3-(4-(7H-Pyrrolo[2,3-d]pyrimidin-4-yl)-1H-Pyrazol-1-yl)-3-Cyclopentylpropanenitrile"

Technology Synopsis

This patent covers specific methods of using a salt of ruxolitinib '429 Patent, col. 2:26-32 The claims are specifically directed to a method of treating graft-versus-host disease in a patient in need thereof by administering a composition containing the phosphate salt of ruxolitinib '429 Patent, claim 1

Asserted Claims

The complaint asserts infringement of "one or more claims" Compl. ¶82

Accused Features

The filing of an ANDA with a label that will allegedly instruct users to administer the generic ruxolitinib product for the treatment of graft-versus-host disease Compl. ¶133 Compl. ¶82

III. The Accused Instrumentality

Product Identification

The accused instrumentalities are Defendants' proposed generic ruxolitinib tablets in 5 mg, 10 mg, 15 mg, 20 mg, and 25 mg strengths, for which Defendants seek FDA approval via ANDA No. 221546 ("Alembic's Proposed Products") Compl. ¶1 Compl. ¶22

Functionality and Market Context

The complaint alleges that Alembic's Proposed Products are generic versions of Incyte's Jakafi® drug product Compl. ¶1 As such, the active ingredient is ruxolitinib, a Janus kinase (JAK) inhibitor. The complaint alleges that the prescribing information for Alembic's Proposed Products will be similar to that for Jakafi® and will instruct physicians and patients to administer the product according to methods claimed in the patents-in-suit Compl. ¶16 Compl. ¶33 No probative visual evidence provided in complaint.

IV. Analysis of Infringement Allegations

The complaint does not provide claim charts or detailed, element-by-element infringement allegations for any of the asserted patents. The infringement theory is a statutory one specific to Hatch-Waxman litigation under 35 U.S.C. § 271(e)(2)(A). The complaint alleges that the act of submitting ANDA No. 221546, which seeks FDA approval to market a generic version of Jakafi® before the expiration of the patents-in-suit listed in the Orange Book, constitutes an act of infringement Compl. ¶31 Compl. ¶37

Identified Points of Contention:

Structural Identity: A primary question for the composition of matter patents ('257 and '362) will be whether the active pharmaceutical ingredient (API) in Alembic's Proposed Products is structurally identical to a compound falling within the scope of the claims. For a generic drug, this is often not disputed, but the focus shifts to the validity of the claims.

❑ **Salt Form and Polymorphism:** For the patents claiming specific salts ('693, '481, '013, '429), a key point of contention may be whether the salt form and/or crystalline polymorph in Alembic's ANDA product is the same as the one claimed. Minor differences in crystalline structure could potentially be used to argue non-infringement.

❑ **Induced Infringement via Labeling:** For the method-of-use patents ('481, '013, '429), the central dispute will likely be whether the proposed label for Alembic's product encourages, recommends, or promotes an infringing use. This will involve a detailed comparison of the language in the proposed label against the steps recited in the method claims **Compl. ¶133**

❑ **Validity:** Defendants' Paragraph IV certification alleges that the patents are "invalid and/or will not be infringed" **Compl. ¶135** Consequently, a major part of the litigation will likely involve Alembic challenging the validity of the asserted claims on grounds such as obviousness, lack of enablement, or anticipation.

V. Key Claim Terms for Construction

The complaint does not identify any specific claim terms for construction. However, based on the nature of chemical patents and Hatch-Waxman litigation, the following terms from the asserted independent claims may become focal points.

❑ **The Term:** "pharmaceutically acceptable salt" (from claim 1 of '257 and '362 patents)

❑ **Context and Importance:** This term's definition is fundamental to the scope of the composition of matter claims. Whether the specific salt form used by Alembic qualifies as "pharmaceutically acceptable" under the patents' definition could be a point of dispute, although such terms often have well-understood meanings in the art.

❑ **Intrinsic Evidence for Interpretation:**

❑ **Evidence for a Broader Interpretation:** The specifications provide a broad, exemplary list of acids and bases that can form such salts, stating the lists are not intended to be exhaustive, which may support a broad construction (e.g., **'257 Patent, col. 32:20-67**).

❑ **Evidence for a Narrower Interpretation:** A defendant could argue that the term should be limited by the examples provided in the patent or by what was known to be "acceptable" for this class of compounds at the time of invention.

❑ **The Term:** "crystalline salt" (from claim 1 of '481 patent)

❑ **Context and Importance:** This term is critical because pharmaceutical compounds can exist in various solid-state forms (polymorphs), some crystalline and some amorphous, with different physical properties. Infringement may depend on whether Alembic's product contains the specific crystalline form claimed.

❑ **Intrinsic Evidence for Interpretation:**

❑ **Evidence for a Broader Interpretation:** The specification may describe methods for producing crystalline forms generally, which could support a construction covering any crystalline form produced by those methods.

❑ **Evidence for a Narrower Interpretation:** The '693 patent provides specific characterization data for certain crystalline salts, such as X-ray powder diffraction (XRPD) peaks and differential scanning calorimetry (DSC) data (e.g., **'693 Patent, col. 11:5-11**). A defendant may argue that "crystalline salt" is limited to forms exhibiting these specific characteristics.

VI. Other Allegations

Indirect Infringement: Plaintiff alleges that Defendants will induce infringement of the method-of-use claims by providing a product with a label that instructs physicians and patients to use the generic drug for patented indications Compl. ¶40 Compl. ¶49 Compl. ¶58 Compl. ¶67 Compl. ¶76 Compl. ¶85 Plaintiff also alleges contributory infringement, stating that Alembic's proposed products are especially adapted for use in an infringing manner and lack substantial non-infringing uses Compl. ¶41 Compl. ¶50 Compl. ¶59 Compl. ¶68 Compl. ¶77 Compl. ¶86

Willful Infringement: The complaint does not explicitly use the word "willful," but it alleges that Defendants have had and continue to have knowledge of the patents-in-suit Compl. ¶41 Compl. ¶50 This knowledge is allegedly based on the patents' listing in the FDA's Orange Book and the filing of the Paragraph IV certification Compl. ¶15 Compl. ¶34 Compl. ¶35 The complaint also asserts that this is an "exceptional case" entitling Incyte to attorneys' fees under 35 U.S.C. § 285 Compl. ¶44

VII. Analyst's Conclusion: Key Questions for the Case

□ A core issue will be one of **claim scope versus product characteristics**: Do the specific chemical composition, salt form, and crystalline structure of Alembic's proposed generic product fall within the literal scope of a valid claim in Incyte's patents, particularly the later patents that claim specific salts and crystalline forms?

□ A second central question will be **patent validity**. Given the Paragraph IV certification, Alembic will almost certainly challenge the validity of the asserted patents. The key question for the court will be whether the inventions, from the broad genus claims of the '257 patent to the specific method-of-use claims of the '429 patent, meet the statutory requirements of novelty, non-obviousness, and written description.

□ A third key question will revolve around **induced infringement**: Assuming the method-of-use claims are valid, does the language in the proposed label for Alembic's generic product actively encourage or instruct medical professionals to prescribe the drug for the specific disorders claimed in patents like '013 and '429, thereby creating liability for inducement?

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Incyte Holdings Corporation

UNITED STATES DISTRICT COURT

DISTRICT OF NEW JERSEY

INCYTE CORP. and INCYTE

HOLDINGS CORP.,

Plaintiffs,

v.

ALEMBIC PHARMACEUTICALS

LIMITED and ALEMBIC

PHARMACEUTICALS, INC.,

Defendants.

Plaintiffs Incyte Corporation and Incyte Holdings Corporation (together, “Incyte”), by their undersigned attorneys, for their Complaint against Defendants Alembic Pharmaceuticals Limited (“Alembic Ltd.”) and Alembic Pharmaceuticals, Inc. (“Alembic Inc.”) (collectively “Alembic” or “Defendants”) allege as follows:

Nature of the Action

1.

This is an action for patent infringement under the patent laws of the United States, 35 U.S.C. § 100, et seq., arising from Alembic’s submission of Abbreviated New Drug Application (“ANDA”) No. 221546 (“Alembic’s ANDA”) to the United States Food and Drug Administration (“FDA”) seeking approval to manufacture, use, import, distribute, offer to sell, and/or sell a generic

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Civil Action No.

COMPLAINT FOR

PATENT INFRINGEMENT

(Filed Electronically)

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version of Incyte’s Jakafi® (ruxolitinib) drug products, 5 mg, 10 mg, 15 mg, 20 mg, and 25 mg tablets,

prior to the expiration of United States Patent Nos. 7,598,257 (the “’257 patent”); 8,415,362 (the “’362

patent”); 8,722,693 (the “’693 patent”); 8,822,481 (the “’481 patent”); 8,829,013 (the “’013 patent”);

and 10,016,429 (the “’429 patent”) (collectively, the “patents-in-suit”). The patents-in-suit are owned

by Incyte Corporation and/or Incyte Holdings Corporation.

The Parties

2.

Plaintiff Incyte Corporation is a corporation organized and existing under the laws of the State of Delaware, having a place of business at 1801 Augustine Cut-Off, Wilmington, DE 19803.

3.

Plaintiff Incyte Holdings Corporation is a corporation organized and existing under the laws of the State of Delaware, having a place of business at 1801 Augustine Cut-Off, Wilmington, DE 19803.

4.

On information and belief, Defendant Alembic Ltd. is a corporation organized and existing under the laws of the Republic of India, with a principal place of business at Alembic Road, Vadodara, Gujarat, India 390 003.

5.

On information and belief, Defendant Alembic Inc. is a corporation organized and existing under the laws of the State of Delaware, with a principal place of business at 550 Hills Drive,

Suite 104B, Bedminster, New Jersey 07921.

6.

Upon information and belief, Alembic Inc. is a wholly-owned subsidiary of Alembic Ltd.

7.

Upon information and belief, Alembic Inc. and Alembic Ltd. collaborate with respect to the development, regulatory approval, marketing, sale, and/or distribution of

pharmaceutical products. Upon further information and belief, Alembic Inc. and Alembic Ltd. are agents of each other and/or operate in concert as integrated parts of the same business group.

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The Patents-in-Suit

8.

On October 6, 2009, the United States Patent and Trademark Office (“USPTO”)

duly and lawfully issued the ’257 patent, entitled, “Heteroaryl substituted pyrrolo[2,3-b]pyridines and

pyrrolo[2,3-b]pyrimidines as Janus kinase inhibitors.” A copy of the ’257 patent is attached hereto as

Exhibit A.

9.

On April 9, 2013, the USPTO duly and lawfully issued the ’362 patent, entitled,

“Pyrazolyl substituted pyrrolo[2,3-b]pyrimidines as Janus kinase inhibitors.” A copy of the ’362 patent is attached hereto as Exhibit B.

10.

On May 13, 2014, the United States Patent and Trademark Office (“USPTO”) duly

and lawfully issued the ’693 patent, entitled, “Salts of the Janus kinase inhibitor (R)-3-(4-(7H-pyrrolo[2,3-d]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile.” A copy of the ’693 patent is attached hereto as Exhibit C.

11.

On September 2, 2014, the USPTO duly and lawfully issued the ’481 patent,

entitled, “Salts of the Janus kinase inhibitor (R)-3-(4-(7H-pyrrolo[2,3-d] pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile.” A copy of the ’481 patent is attached hereto as Exhibit D.

12.

On September 9, 2014, the USPTO duly and lawfully issued the ’013 patent,

entitled, “Salts of the Janus kinase inhibitor (R)-3-(4-(7H-pyrrolo[2,3-D]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile.” A copy of the ’013 patent is attached hereto as Exhibit E.

13.

On July 10, 2018, the USPTO duly and lawfully issued the ’429 patent, entitled,

“Salts of the Janus kinase inhibitor (R)-3-(4-(7H-pyrrolo[2,3-D]pyrimidin-4-yl)-1H- pyrazol-1-yl)-3-cyclopentylpropanenitrile.” A copy of the ’429 patent is attached hereto as Exhibit F.

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The Jakafi® Drug Product

14.

Incyte Corporation holds an approved New Drug Application (“NDA”) under

Section 505(a) of the Federal Food Drug and Cosmetic Act (“FFDCA”), 21 U.S.C. § 355(a) for Jakafi® (ruxolitinib) (NDA No. 202192).

15.

Pursuant to 21 U.S.C. § 355(b)(1) and attendant FDA regulations, the patents-in-

suit are listed in the FDA publication entitled “Approved Drug Products with Therapeutic Equivalence Evaluations” (the “Orange Book”), with respect to Jakafi®.

16.

The FDA-approved prescribing information for Jakafi® instructs and encourages physicians, pharmacists, other healthcare workers, and patients to administer Jakafi® according to one or more of the methods claimed in the patents-in-suit.

Jurisdiction and Venue

17.

This Court has jurisdiction over the subject matter of this action pursuant to 28

U.S.C. §§ 1331, 1338(a), 2201, and 2202.

18.

This Court has personal jurisdiction over Alembic Ltd. pursuant to Federal Rule of Civil Procedure 4(k)(2), including because: (a) Incyte's claims arise under federal law; (b) Alembic Ltd. is a foreign defendant not subject to general personal jurisdiction in the courts of any state; and (c) Alembic Ltd. has sufficient contacts with the United States as a whole, including, without limitation, preparing and submitting ANDAs to the FDA and/or manufacturing, importing, offering to sell, and/or selling pharmaceutical products that are distributed throughout the United States, such

that this Court's exercise of jurisdiction over Alembic Ltd. satisfies due process.

19.

This Court has personal jurisdiction over Alembic Inc. by virtue of, inter alia, its systematic and continuous contacts with the State of New Jersey.

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20.

On information and belief, Alembic purposefully has conducted and continues to conduct business in this Judicial District.

21.

On information and belief, Alembic is in the business of, among other things, manufacturing, marketing, importing, offering for sale, and selling pharmaceutical products, including generic drug products, throughout the United States, including in this Judicial District.

22.

On information and belief, Alembic submitted ANDA No. 221546 seeking FDA approval to engage in the manufacture, use, importation, distribution, offer to sell, and/or sale of the generic drug products that are the subject of Alembic's ANDA ("Alembic's Proposed Products"), throughout the United States, including in New Jersey and in this Judicial District, prior to the expiration of the patents-in-suit.

23.

On information and belief, this Judicial District is a likely destination for Alembic's Proposed Products.

24.

On information and belief, Alembic intends to benefit directly if its ANDA is approved by participating in the manufacture, importation, distribution, and/or sale of Alembic's Proposed Products.

25.

On information and belief, Alembic Inc. maintains a regular and established physical place of business at 550 Hills Drive, Suite 104B, Bedminster, New Jersey 07921.

26.

On information and belief, Alembic Inc. is registered with the State of New Jersey's Division of Revenue and Enterprise Services as a business operating in New Jersey under Business ID No. 0101031141 and is registered with the New Jersey Department of Health under Registration No. 5004785.

27.

Alembic has purposefully availed itself of the rights, benefits, and privileges of New

Jersey, including by asserting counterclaims in this Court. See, e.g., Adverio Pharma GmbH et al. v. 5

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Alembic Pharmaceuticals Limited et al., No. 2:23-cv-01285 (D.N.J); Celgene Corporation v. Alembic

Pharmaceuticals Limited et al., No. 2:21-cv-20099 (D.N.J); Actelion Pharmaceuticals Ltd. et al. v. MSN Pharmaceuticals Inc. et al., No. 1:20-cv-03859 (D.N.J); Duke University et al, v. Alembic Pharm. Ltd. et al., No. 3:17-cv-7453 (D.N.J); Otsuka Pharmaceutical Co., Ltd. v Alembic Pharmaceuticals Limited et al., No. 1:14-cv-07405 (D.N.J).

28.

Alembic has further availed itself of the jurisdiction of this Judicial District by initiating litigation in this Judicial District. E.g., Alembic Pharm. Ltd. v. Novartis Pharm. Corp., No. 2:19-cv-20890 (D.N.J).

29.

For at least the foregoing reasons, venue is proper in this Judicial District for Alembic Inc. pursuant to 28 U.S.C. §§ 1391 and/or 1400(b).

30.

For at least the foregoing reasons, venue is proper for Alembic Ltd. pursuant to 28 U.S.C. §§ 1391 and/or in this Judicial District 1400(b), including, for example,

because Alembic Ltd. is a company organized and existing under the laws of India and may be sued in any judicial district.

Acts Giving Rise To This Suit

31.

Pursuant to Section 505 of the FFDCA, Alembic submitted ANDA No. 221546 seeking approval to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Alembic's Proposed Products, which are proposed generic versions of Incyte's approved Jakafi® products, before the patents-in-suit expire.

32.

On information and belief, following FDA approval of Alembic's ANDA, Alembic will make, use, sell, or offer to sell Alembic's Proposed Products throughout the United States, and/or import such generic products into the United States.

33.

On information and belief, following FDA approval of Alembic's ANDA,

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Alembic's Proposed Products will include prescribing information, similar to that for Jakafi®, that instructs and encourages physicians, pharmacists, other healthcare workers, and patients to administer

Alembic's Proposed Products according to one or more of the methods claimed in the patents-in-suit.

34.

On information and belief, in connection with the submission of ANDA No. 221546 as described above, Alembic provided written certifications to the FDA pursuant to Section 505 of the FFDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV) ("Alembic's Paragraph IV Certifications"), alleging that the claims of the patents-in-suit are invalid and/or will not be infringed by the activities described

in Alembic's ANDA.

35.

Alembic subsequently sent to Incyte written notice of Alembic's Paragraph IV Certifications for the patents-in-suit, alleging that the claims of those patents are invalid and/or will not be infringed by the activities described in Alembic's ANDA. Alembic's written notice to Incyte conveyed that Alembic seeks approval to market Alembic's Proposed Products before the patents-in-suit expire.

Count I: Infringement of the '257 Patent

36.

set forth herein.

37.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully Alembic's submission of ANDA No. 221546, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Alembic's Proposed Products prior to the expiration of the '257 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).

38.

There is a justiciable controversy between the parties hereto as to the infringement of the '257 patent.

39.

Unless enjoined by this Court, upon FDA approval of Alembic's ANDA, Alembic

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will infringe one or more claims of the '257 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Alembic's Proposed Products in the United States.

40.

Unless enjoined by this Court, upon FDA approval of Alembic's ANDA, Alembic will induce infringement of one or more claims of the '257 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Alembic's Proposed Products in the United States. On information and belief, upon FDA approval of Alembic's ANDA, Alembic will intentionally encourage acts of direct infringement with knowledge of the '257 patent and knowledge

that its acts are encouraging infringement.

41.

Unless enjoined by this Court, upon FDA approval of Alembic's ANDA, Alembic will contributorily infringe one or more claims of the '257 patent under 35 U.S.C. § 271(c) by making,

using, offering to sell, selling, and/or importing Alembic's Proposed Products in the United States.

On information and belief, Alembic has had and continues to have knowledge that Alembic's Proposed Products are especially adapted for a use that infringes one or more claims of the '257 patent and that there is no substantial non-infringing use for Alembic's Proposed Products.

42.

Incyte will be substantially and irreparably damaged and harmed if Alembic's infringement of the '257 patent is not enjoined.

43.

Incyte does not have an adequate remedy at law.

44.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count II: Infringement of the '362 Patent

45.

set forth herein.

46.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully Alembic's submission of ANDA No. 221546, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer

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for sale, and/or importation into the United States of Alembic's Proposed Products prior to the expiration of the '362 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).

47.

There is a justiciable controversy between the parties hereto as to the infringement of the '362 patent.

48.

Unless enjoined by this Court, upon FDA approval of Alembic's ANDA, Alembic will infringe one or more claims of the '362 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Alembic's Proposed Products in the United States.

49.

Unless enjoined by this Court, upon FDA approval of Alembic's ANDA, Alembic will induce infringement of one or more claims of the '362 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Alembic's Proposed Products in the United States. On information and belief, upon FDA approval of Alembic's ANDA, Alembic will intentionally encourage acts of direct infringement with knowledge of the '362 patent and knowledge

that its acts are encouraging infringement.

50.

Unless enjoined by this Court, upon FDA approval of Alembic's ANDA, Alembic will contributorily infringe one or more claims of the '362 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Alembic's Proposed Products in the United States. On information and belief, Alembic has had and continues to have knowledge that Alembic's Proposed Products are especially adapted for a use that infringes one or more claims of the '362 patent and that there is no substantial non-infringing use for Alembic's Proposed Products.

51.

Incyte will be substantially and irreparably damaged and harmed if Alembic's infringement of the '362 patent is not enjoined.

52.

Incyte does not have an adequate remedy at law.

53.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable

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attorneys' fees under 35 U.S.C. § 285.

Count III: Infringement of the '693 Patent

54.

set forth herein.

55.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully Alembic's submission of ANDA No. 221546, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Alembic's Proposed Products prior to the expiration of the '693 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).

56.

There is a justiciable controversy between the parties hereto as to the infringement of the '693 patent.

57.

Unless enjoined by this Court, upon FDA approval of Alembic's ANDA, Alembic will infringe one or more claims of the '693 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Alembic's Proposed Products in the United States.

58.

Unless enjoined by this Court, upon FDA approval of Alembic's ANDA, Alembic will induce infringement of one or more claims of the '693 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Alembic's Proposed Products in the United States. On information and belief, upon FDA approval of Alembic's ANDA, Alembic will intentionally encourage acts of direct infringement with knowledge of the '693 patent and knowledge

that its acts are encouraging infringement.

59.

Unless enjoined by this Court, upon FDA approval of Alembic's ANDA, Alembic will contributorily infringe one or more claims of the '693 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Alembic's Proposed Products in the United States. On information and belief, Alembic has had and continues to have knowledge that Alembic's

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Proposed Products are especially adapted for a use that infringes one or more claims of the '693 patent and that there is no substantial non-infringing use for Alembic's Proposed Products.

60.

Incyte will be substantially and irreparably damaged and harmed if Alembic's

infringement of the '693 patent is not enjoined.

61.

Incyte does not have an adequate remedy at law.

62.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable

attorneys' fees under 35 U.S.C. § 285.

Count IV: Infringement of the '481 Patent

63.

set forth herein.

64.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully Alembic's submission of ANDA No. 221546, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Alembic's Proposed Products prior to the expiration of the '481 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).

65.

There is a justiciable controversy between the parties hereto as to the infringement of the '481 patent.

66.

Unless enjoined by this Court, upon FDA approval of Alembic's ANDA, Alembic will infringe one or more claims of the '481 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Alembic's Proposed Products in the United States.

67.

Unless enjoined by this Court, upon FDA approval of Alembic's ANDA, Alembic will induce infringement of one or more claims of the '481 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Alembic's Proposed Products in the United States. On information and belief, upon FDA approval of Alembic's ANDA, Alembic will

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intentionally encourage acts of direct infringement with knowledge of the '481 patent and knowledge that its acts are encouraging infringement.

68.

Unless enjoined by this Court, upon FDA approval of Alembic's ANDA, Alembic will contributorily infringe one or more claims of the '481 patent under 35 U.S.C. § 271(c) by making,

using, offering to sell, selling, and/or importing Alembic's Proposed Products in the United States. On information and belief, Alembic has had and continues to have knowledge that Alembic's Proposed Products are especially adapted for a use that infringes one or more claims of the '481 patent and that there is no substantial non-infringing use for Alembic's Proposed Products.

69.

Incyte will be substantially and irreparably damaged and harmed if Alembic's infringement of the '481 patent is not enjoined.

70.

Incyte does not have an adequate remedy at law.

71.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count V: Infringement of the '013 Patent

72.

set forth herein.

73.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully Alembic's submission of ANDA No. 221546, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Alembic's Proposed Products prior to the expiration of the '013 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).

74.

There is a justiciable controversy between the parties hereto as to the infringement of the '013 patent.

75.

Unless enjoined by this Court, upon FDA approval of Alembic's ANDA, Alembic

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will infringe one or more claims of the '013 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Alembic's Proposed Products in the United States.

76.

Unless enjoined by this Court, upon FDA approval of Alembic's ANDA, Alembic will induce infringement of one or more claims of the '013 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Alembic's Proposed Products in the United States. On information and belief, upon FDA approval of Alembic's ANDA, Alembic will intentionally encourage acts of direct infringement with knowledge of the '013 patent and knowledge that its acts are encouraging infringement.

77.

Unless enjoined by this Court, upon FDA approval of Alembic's ANDA, Alembic will contributorily infringe one or more claims of the '013 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Alembic's Proposed Products in the United States. On information and belief, Alembic has had and continues to have knowledge that Alembic's Proposed Products are especially adapted for a use that infringes one or more claims of the '013 patent and that there is no substantial non-infringing use for Alembic's Proposed Products.

78.

Incyte will be substantially and irreparably damaged and harmed if Alembic's infringement of the '013 patent is not enjoined.

79.

Incyte does not have an adequate remedy at law.

80.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count VI: Infringement of the '429 Patent

81.

set forth herein.

82.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully Alembic's submission of ANDA No. 221546, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer

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for sale, and/or importation into the United States of Alembic's Proposed Products prior to the expiration of the '429 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).

83.

There is a justiciable controversy between the parties hereto as to the infringement of the '429 patent.

84.

Unless enjoined by this Court, upon FDA approval of Alembic's ANDA, Alembic will infringe one or more claims of the '429 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Alembic's Proposed Products in the United States.

85.

Unless enjoined by this Court, upon FDA approval of Alembic's ANDA, Alembic will induce infringement of one or more claims of the '429 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Alembic's Proposed Products in the United States. On information and belief, upon FDA approval of Alembic's ANDA, Alembic will intentionally encourage acts of direct infringement with knowledge of the '429 patent and knowledge

that its acts are encouraging infringement.

86.

Unless enjoined by this Court, upon FDA approval of Alembic's ANDA, Alembic will contributorily infringe one or more claims of the '429 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Alembic's Proposed Products in the United States. On information and belief, Alembic has had and continues to have knowledge that Alembic's Proposed Products are especially adapted for a use that infringes one or more claims of the '429 patent and that there is no substantial non-infringing use for Alembic's Proposed Products.

87.

Incyte will be substantially and irreparably damaged and harmed if Alembic's infringement of the '429 patent is not enjoined.

88.

Incyte does not have an adequate remedy at law.

89.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable

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attorneys' fees under 35 U.S.C. § 285.

PRAYER FOR RELIEF

WHEREFORE, Incyte respectfully request the following relief:

(A)

A Judgment that Alembic has infringed the patents-in-suit by submitting ANDA No. 221546 with the accompanying Paragraph IV Certifications and notice to Incyte of same;

(B)

A Judgment that Alembic has infringed, and that Alembic's making, using, selling, offering to sell, and/or importing Alembic's Proposed Products will infringe, one or more claims of the patents-in-suit;

(C) An Order that, pursuant to 35 U.S.C. § 271(e)(4)(A), the effective date of FDA approval of ANDA No. 221546 be a date which is not earlier than the later of the expiration of the patents-in-suit, or any later expiration of exclusivity to which Incyte is or becomes entitled;

(D) Preliminary and permanent injunctions enjoining Alembic and its officers, agents, attorneys, and employees, and those acting in privity and/or concert with them, from making, using, offering to sell, selling, and/or importing Alembic's Proposed Products until after the expiration of the patents-in-suit, or any later expiration of exclusivity to which Incyte is or becomes entitled;

(E)

A permanent injunction, pursuant to 35 U.S.C. § 271(e)(4)(B), restraining and enjoining Alembic, its officers, agents, attorneys, and employees, and those acting in privity and/or concert with them, from practicing any of the subject matter claimed in the patents-in-suit, or from actively inducing or contributing to the infringement of any claim of the patents-in-suit, until after the expiration of the patents-in-suit, or any later expiration of exclusivity to which Incyte is or becomes entitled;

(F)

A Judgment that the commercial manufacture, use, offer for sale, sale, and/or importation into the United States of Alembic's Proposed Products will directly infringe, induce infringement of, and/or contribute to infringement of the patents-in-suit;

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(G)

To the extent that Alembic, its officers, agents, attorneys, and/or employees, or those acting in privity and/or concert with them, has committed any acts with respect to the subject matter claimed in the patents-in-suit, other than those acts expressly exempted by 35

U.S.C. § 271(e)(1), a Judgment awarding Incyte damages for such acts;

(H)

If Alembic, its officers, agents, attorneys, and/or employees, or those acting in privity and/or concert with them, engages in the commercial manufacture, use, offer for sale, sale, and/or importation into the United States of Alembic's Proposed Products prior to the expiration of the patents-in-suit, a Judgment awarding damages to Incyte resulting from such infringement, together with interest;

(I)

A Judgment declaring that the patents-in-suit remain valid and enforceable;

(J)

A Judgment that this is an exceptional case pursuant to 35 U.S.C. § 285 and awarding Incyte its attorneys' fees incurred in this action;

(K)

A Judgment awarding Incyte its costs and expenses incurred in this action; and

(L)

Such further and other relief as this Court may deem just and proper.

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Dated: June 26, 2026

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CERTIFICATION PURSUANT TO L. CIV. R. 11.2 & 40.1

Pursuant to Local Civil Rules 11.2 and 40.1, I hereby certify, to the best of my knowledge, that this matter is related to Incyte Corp., et al. v. Apotex Inc., No. 24-4366 (CPO)(MJS) (D.N.J.) (consolidated), Incyte Corp., et al. v. Hikma Pharms. USA Inc., No. 25-1859 (CPO)(MJS) (D.N.J.), Incyte Corp. et al. v. Sun Pharmaceutical Industries, Inc. et al, No. 25-13225 (CPO)(MJS) (D.N.J.), Incyte Corp. et al. v. Granules India Ltd., No. 25-13227 (CPO)(MJS) (D.N.J.), Incyte Corp. et al. v. Eugia Pharma Specialities Limited et al., No. 25-17833 (CPO)(MJS), Incyte Corp. at al. v. Dr. Reddy's Laboratories, Inc. et al., No. 25-17832 (CPO)(MJS), and Incyte Corp. et al., v. Alkem Laboratories et al., No. 26-2338 (CPO)(MJS) because each of the foregoing cases involves or involved the same Plaintiffs and overlapping patents-in-suit, and because Defendants are seeking FDA

approval to sell a generic version of the same drug product.

I further certify, to the best of my knowledge, that the matter in controversy is not the subject of any other action pending in any court, or of any pending arbitration or administrative proceeding.

Dated: June 26, 2026

By: s/ Charles M. Lizza

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